

NY HERO ACT

AIRBORNE INFECTIOUS DISEASE EXPOSURE PREVENTION PLAN – SPENCER OGDEN CONTRACTORS

Please note: This Airborne Infections Disease Exposure Prevention Plan ("Plan") is based upon the best knowledge and guidance available to Spencer Ogden as of the time of writing. Spencer Ogden reserves the right to amend this Plan at any time.

As Spencer Ogden Contractors ("Contractors") work at Spencer Ogden's client sites, SO has minimal oversight over the Contractors' day to day work environments. This Plan is considered the minimum standard to meet for Contractors in the event of an airborne infectious disease event. SO recommends and encourages Contractors to follow public health recommendations and guidance while at work and in off-work hours.

A. EXPECTATIONS OF CONTRACTORS

Adhere to Governmental Requirements

All Contractors are expected to adhere to any governmental mandate or requirement that is applicable to them or the area in which they work. If Contractors are unable to work due to governmental requirements, they are expected to contact their SO consultant immediately as well as their Client supervisor.

Adhere to Client HSEMS Policies

While on Client sites or while under the control or supervision of the Client, all Spencer Ogden (SO) personnel must adhere to the Client's Health, Safety and Environmental Management System (HSEMS). It is expected that Client HSE Inductions will be carried out for all SO personnel before they commence any site /facility activities.

Adhere to SO HSEMS Policies

If the Client's HSEMS does not include some or all of the requirements of the SO Plan, all Contractors will be required to follow these requirements in addition to the Client HSEMS.

B. EXPOSURE CONTROLS

1. All Contractors are expected to self-screen for signs of illness. This includes taking one's temperature and doing general wellness reviews. All Contractors are expected to follow any guidance from the State Department of Health or the Centers for Disease Control and Prevention when conducting these screenings.

2. If a Contractor feels unwell or shows symptoms of illness, he/she MAY NOT report to work (unless able to work from home). Instead, he/she should contact his/her SO consultant and Client supervisor and explain that he/she does not feel well and therefore will not be reporting for work. If requested, the employee is required to cooperate with any request for isolation, quarantine, and close contact tracing from the Client or SO.

3. During the period this policy is active, Contractors should physically distance at least six feet from other individuals, or a distance as recommended by the State Department of Health or the Centers for Disease Control and Prevention, to the greatest extent possible.

4. If personal protective equipment (PPE) such as face coverings, gloves, hand sanitizer, etc. is necessary for the SO employee while at work, please ask the Client you are working with for such materials. If the Client states it cannot or will not provide these materials, please contact your SO contact for further instruction on how to procure these materials with prior approval on the cost from SO.

5. Except as prohibited due to Client HSEMS policy, all SO employees will be expected to wear an appropriate face covering while at a work site and during work hours, regardless of location. In accordance with applicable guidance from the State Department of Health or Centers for Disease Control and Prevention, face coverings may not be required if the employee is so isolated from other individuals that a face covering will not prevent illness transmission.

6. All employees are required to regularly wash their hands with water and soap. If those facilities are not available at the Client site, the employee must use hand sanitizer regularly. At a minimum, employees should wash or sanitize hands after using the restroom, after touching another individual, or after touching surfaces that may be contaminated with an airborne illness (such as door handles, shared computers, etc.)

**SPENCER
OGDEN**

C. ANTI-RETALIATION

1. SO will not permit discrimination, threats, or retaliation, or take adverse action any Contractor for:

- i. Exercising their rights under the Plan;
- ii. Reporting violations of Section 218-b of the Labor Law, or a plan adopted under this section to any state, local, or federal government entity, public officer or elected official;
 - a. For the purposes this Section C, a Contractor shall be deemed to have reported a violation if they reasonably believe, in good faith, that a violation has occurred.
- iii. Reporting an airborne infectious disease exposure concern to, or seeking assistance or intervention with respect to airborne infectious disease exposure concerns, to his/her employer, state, local, or federal government entity, public officer, or elected official; or
- iv. Refusing to work where such employee reasonably believes, in good faith, that such work exposes him or her, or other workers or the public, to an unreasonable risk of exposure to an airborne infectious disease due to the existence of working conditions that are inconsistent with laws, rules, policies, orders of any governmental entity, including but not limited to, the minimum standards provided by the model airborne infectious disease exposure prevention standard. However, to receive this protection the employee must have notified SO and the Client of the inconsistent working conditions and the Client failed to cure the conditions. This protection will also apply if the Client had or should have had knowledge of the inconsistent working conditions and failed to cure them.
 - a. Notification of a violation by a Contractor may be made verbally or in writing.